charged or released from active duty in accordance with paragraph (d) of this section will be reassigned.

(d) *Separation from the Air Force.* (1) An eliminated trainee whose current enlistment is specifically for OTS will be afforded the opportunity to elect, in writing, to complete his enlistment contract on active duty or to be immediately separated. Should he elect to complete his enlistment contract on active duty, he will not again be permitted to request relief from active duty or discharge under this authority. Eliminated students who request release from active duty and who have a remaining military service obligation, will be transferred to the AFRes for the remainder of their military service obligation, and they will be initially assigned to the Ineligible Reserve Section, Air Reserve Records Center, Denver, Colorado. Personnel who become members of the AFRes are deferred or exempt from induction provided they meet participation requirements.

§ 861.19 Reinstatement of former students.

(a) *Academic deficiency.* Students eliminated from training because of academic deficiency will not be reinstated at a later date unless recommended for further officer training by the faculty board. At least 1 year must elapse from the date of termination of student status before reapplication.

(b) *Military deficiency.* Students eliminated from training because of military deficiency will not be reinstated.

(c) *Medical.* Students eliminated from training because of medical disqualification may reapply, if a later medical examination indicates that the previous disqualification has been corrected or no longer exists. However, the former student must meet all other requirements for appointment and must have been recommended for reinstatement by the eliminating authority.

(d) *Resignation.* A student who resigns from the training program will not be reinstated.

(e) *Emergency leave.* A student may be granted emergency leave under regulations issued by Lackland Military Training Center (OMS). In such instance, he will be held over for succeeding classes, if necessary. The length of time involved or the number of "holdovers" granted any one student will be determined by Lackland Military Training Center (OMS).

§ 861.20 Appointment as an Officer, Reserve of the Air Force.

(a) *Tendering appointment.* A student who successfully completes the prescribed officer training course and who is mentally, morally, and physically qualified will be tendered appointment as second lieutenant, Reserve of the Air Force, for an indefinite term. Each graduate so appointed will be ordered into active military service as a career Reserve officer. He will serve for a minimum of 4 years from the date of graduation from officer training unless sooner relieved by orders of competent authority. In addition, officers undergoing training after commissioning will incur active duty service commitments for training. Each graduate will be assigned direct to duty or will be given additional training appropriate to his qualifications and desires correlated with Air Force requirements. The type of training the graduate will pursue will be determined by Lackland Military Training Center (OMS) in accordance with quotas established by Headquarters USAF.

(b) *Review.* Before graduation, the faculty board of the school will review the qualifications of each student and will prepare for each one a report indicating that he is or is not mentally, morally, physically, and professionally qualified for appointment in the grade of second lieutenant, Reserve of the Air Force, with appropriate recommendations for appointment. The physical qualifications for appointment will be determined by using any medical examination sufficiently detailed for each determination, completed within 12 months immediately preceding the date of appointment as an officer, Reserve of the Air Force, unless re-examination is indicated because of a serious intervening illness or injury. If the recommendation is negative, appropriate elimination action will be initiated.

(c) *Graduates who decline to accept appointment.* A graduate who declines to accept an appointment as an officer Reserve of the Air Force, will be disposed of as an eliminated student. His appointment as an officer trainee, or status as an eliminated student, will be terminated as outlined in § 861.17 and he may be reassigned within the Air Force in accordance with § 861.18.

§ 861.21 Discharge.

When commissioned in accordance with § 861.20, student will be discharged from his airman status. The commandant will prepare a discharge certificate and report of acceptance of appointment as a commissioned officer. The discharge certificate and report of separation will not be delivered to the graduate until after the Oath of Office as a commissioned officer has been administered. The reason and authority for discharge will be entered on the report of separation.

§ 861.22 Assignment of graduates.

(a) The Commander, ATC, will assign graduates to pilot and navigator training in accordance with existing criteria. Graduates who will enter technical training schools or who will be assigned direct to duty will be assigned by ATC in consonance with instructions provided by Headquarters USAF.

(b) Graduates of flying training or technical training schools will incur the active duty service commitment for the type of training received with a minimum of 4 years' active duty. Officers desiring release must request release from extended active duty in accordance with existing directives.

(c) Graduates who are assigned direct to duty will incur a directed duty in the occupational field containing the AFS in which initially assigned.

R. J. PUGH,
Colonel, U.S. Air Force, Deputy Director of Administrative Services.

[F.R. Doc. 61-1777; Filed, Mar. 1, 1961; 8:45 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2272]

[Anchorage 052775]

ALASKA

Partly Revoking Executive Order 1919½ of April 21, 1914, Executive Order No. 7448 of September 12, 1936, and Executive Order No. 8102 of April 29, 1939

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141) and section 1 of the act of March 12, 1914 (38 Stat. 305; 48 U.S.C. 303) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 1919½ of April 21, 1914, reserving certain lands in Alaska for townsite purposes; Executive Order No. 7448 of September 12, 1936, and Executive Order No. 8102 of April 29, 1939, reserving lands for use of the War Department, are hereby revoked so far as they affect the following-described lands:

SEWARD MERIDIAN

T. 13 N., R. 3 W.,
Commencing at the ¼ corner common to Sections 6 & 7, thence East 822.37 feet to Corner No. 1; thence S. 0°08' E., 878.36 feet; S. 30°43'41" W., 1005.02 feet; S. 81°49'38" W., 309.87 feet; N. 0°08' W., 1786.34 feet to the point of beginning.

Containing approximately 27.94 acres.

2. Until 10:00 a.m. on May 25, 1961, the State of Alaska shall have a preferred right to select the lands in accordance with and subject to the limitations and requirements of the act of July 28, 1956 (70 Stat. 709; 48 U.S.C. 46–3b) and section 6(g) of the Alaska Statehood Act of July 7, 1958 (72 Stat. 339), and the regulations in 43 CFR 76.1–76.18. Thereafter the lands will not be subject to disposition under the public land laws unless and until it is so provided by order of an authorized officer of the Bureau of Land Management.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

FEBRUARY 23, 1961.

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